

Page: [p1 1]-[p3 7]

Citation Start: Case 2:22-cv-00223-Z Document 100 Filed 02/13/23 Page 1 of 26 PageID 3760

Citation End: Gonzales v. Oregon,

Heading: State Authority to Regulate Abortion Post-Dobbs

Page: [p3 8]-[p4 16]

Citation Start: 546 U.S. 243 (2006) 12

Citation End: Okla. Stat. Ann. tit. 63, 1-729.1 13

Heading: Federal Regulation of Abortion

Page: [p4 17]-[p5 27]

Citation Start: Pub. L. No. 91-662, 84 Stat. 1973 (1971) 10

Citation End: Retail Pharmacies Can Now Offer Abortion Pill, FDA Says,

Heading: State Regulation of Abortion

Page: [p5 28]-[p7 18]

Citation Start: Politico (Jan. 3, 2023) 16

Citation End: judgments of the people and their elected representatives. Ibid. Some States have

Heading: Public Interest in Abortion Regulation

Page: [p7 19]-[p8 15]

Citation Start: chosen to adopt or maintain tighter restrictions and more thorough regulations on

Citation End: Administrations efforts to evaluat[e] and monitor[] state laws that threaten to

Heading: Administrative Action on Abortion

Page: [p8 16]-[p9 11]

Citation Start: infringe on purported Federal legal protections [for abortion]. Memorandum on

Citation End: doctors, and with only one in-person visit. In 2021, the agency halted the remaining

Heading: State Authority to Regulate Abortion Post-Dobbs

Page: [p9 12]-[p10 9]

Citation Start: in-person dispensing requirements during the COVID-19 pandemic and later

Citation End: 355(a). To obtain FDA approval, a new drug must undergo an extensive process

Heading: FDA's Role in Regulating Abortion-Inducing Drugs

Page: [p10 10]-[p11 7]

Citation Start: with rigorous testing. The FDAs conclusion that a drug is safe and effective must be

Citation End: bleeding requiring surgery. App.522. These risks increase later in pregnancy and in

Heading: The Safety and Effectiveness of Mifepristone

Page: [p11 8]-[p12 4]

Citation Start: cases of ectopic pregnancy. App.518-25, 607-09. The approval thus included

Citation End: Despite the risks that the FDA itself recognized, over the next decade and

Heading: The Importance of Supervised Physician Care in Abortion

Page: [p12 5]-[p13 2]

Citation Start: beyond, the Obama and Biden Administrations expanded mifepristones use and

Citation End: mifepristone REMS program to make clear the agencys position that the drug can

Heading: The Expansion of Mifepristone Use and Safety Measures

Page: [p13 3]-[p14 4]

Citation Start: now be dispensed by certified prescribers or retail pharmacies in-person or by mail.

Citation End: Plaintiffs have demonstrated that the FDAs actions on mifepristone violate

Heading: State Authority to Regulate Abortion Post-Dobbs

Page: [p14 5-24]

Citation Start: the Federal Food, Drug, and Cosmetic Act and related FDA regulations. See Pls. Mot.

Citation End: regulation doubly forecloses the FDAs approval. Pregnancy is not an illness[]. It is

Heading: Federally Regulated Abortions

Page: [p14 25]-[p15 18]

Citation Start: a natural state essential to perpetuating human life. And typical early-stage

Citation End: argument of an agency that is confident in the legality of its actions. And the

Heading: Natural State of Essential Perpetuity of Human Life

Page: [p15 19]-[p16 12]

Citation Start: argument fails. When Congress established the REMS framework in 2007, it

Citation End: other common carrier to ship in interstate or foreign commerce ... any drug,

Heading: Argument Fails to Establish a Framework for Risk Evaluation

Page: [p16 13]-[p17 8]

Citation Start: medicine, article, or thing designed, adapted, or intended for producing abortion. Id.

Citation End: are at war with the law, the FDA cannot claim any public interest in enforcing them.

Heading: Medicinal Abortions and Statutory Prohibitions

Page: [p17 9]-[p18 6]

Citation Start: Indeed, enjoining the FDA to abide by federal law would promote the public

Citation End: will harm the public interest.

Heading: State Authority to Regulate Abortion Post-Dobbs

Page: [p18 7]-[p19 2]

Citation Start: Under our Constitution, States have the primary authority to legislate to

Citation End: inflammatory disease, severe bacterial infection and death, id. 41-41-103(a); are

Heading: State Primacy in Regulating Health and Safety

Page: [p19 3-22]

Citation Start: associated with an increased risk of complications relative to surgical abortion that

Citation End: numerous States elected representatives. But the authority to regulat[e] or

Heading: Risk of Complications in Surgical Abortions

Page: [p19 23]-[p20 17]

Citation Start: prohibit[] abortion belongs to the citizens of each State. Dobbs, 142 S. Ct. at 2284.

Citation End: the FDAs effort to override duly enacted state laws.

Heading: Prohibition of Abortion and State Authority

Page: [p20 18]-[p21 14]

Citation Start: C. The FDAs Actions Harm The Public Interest By Undermining

Citation End: statement from Congress is heightened where, as here, an administrative

Heading: Harm to Public Interest and State Authority

Page: [p21 15]-[p22 12]

Citation Start: interpretation alters the federal-state framework by permitting federal

Citation End: recent actions is to encourage and achieve evasion of those state laws. Such evasion

Heading: State Authority to Regulate Abortion Post-Dobbs

Page: [p22 13]-[p23 8]

Citation Start: particularly when coupled with the FDAs abandonment of key protections on

Citation End: Remarks of President Joe BidenState of the Union Address as Prepared for

Heading: FDA's Abandonment of Key Protections

Page: [p23 9]-[p25 12]

Citation Start: Delivery, The White House (Feb. 7, 2023), <http://bit.ly/3RHeAfn> (reaffirming

Citation End: Theodore E. Rokita Brenna Bird

Heading: Delivering Relief from FDA's Unlawful Actions

Page: [p25 13]-[p26 9]

Citation Start: Attorney General Attorney General

Citation End: 20

Heading: Amici Curiae Brief in Support of Injunctive Relief
